

HOUSE No. 1206

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to epinephrine injectors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/15/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/21/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/5/2025</i>

HOUSE No. 1206

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1206) of Bradley H. Jones, Jr., and others relative to health insurance coverage for epinephrine injectors. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1054 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to epinephrine injectors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 17S the following section:-

3 Section 17T. Any coverage offered by the commission to an active or retired employee of
4 the commonwealth insured under the group insurance commission shall provide coverage for the
5 appropriate weight-based dosage of epinephrine injectors. The benefits in this section shall not
6 be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any
7 other benefit provided by the commission. For purposes of this section the term “epinephrine
8 injector” shall mean an auto-injector approved by the federal Food and Drug Administration for
9 the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug

Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10Q the following section:-

Section 10R. The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms, and third-party administrators under contract to a Medicaid-managed care organization or primary care clinician plan shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drugs provided by the division. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after section 47UU the following section:-

Section 47VV. Any individual policy of accident or sickness insurance issued pursuant to this chapter shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drug provided by the insurer. For purposes of this section the term “epinephrine injector” shall mean

an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8VV the following section:-

Section 8WW. Any contract between a subscriber and the corporation under an individual group or hospital service plan that is delivered, issued, or renewed within the commonwealth shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drug provided by the insurer. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. Any subscription certificate under an individual or group medical service agreement delivered, issued, or renewed within the commonwealth shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-

pocket limits than any other prescribed drug provided by the insurer. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4NN the following section:-

Section 4OO. Any individual or group health maintenance contract shall provide coverage for the appropriate weight-based dosage of epinephrine injectors. An epinephrine injector prescribed in this section shall not be subject to any greater deductible, coinsurance, copayments, or out-of-pocket limits than any other prescribed drug provided by the commission. For purposes of this section the term “epinephrine injector” shall mean an auto-injector approved by the federal Food and Drug Administration for the administration of epinephrine and a pre-filled syringe approved by the federal Food and Drug Administration and used for the administration of epinephrine that contains a pre-measured dose of epinephrine that is equivalent to the dosages used in an auto-injector.